

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 11-12

**HANJIN SHIPPING CO., LTD.;
KAWASAKI KISEN KAISHA, LTD.;
NIPPON YUSEN KAISHA;
UNITED ARAB SHIPPING COMPANY (S.A.G.); and
YANG MING MARINE TRANSPORT CORPORATION,**

COMPLAINANTS

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY

RESPONDENT

**METADATA SUPPLEMENT TO STATUS REPORT OF ONLY REMAINING
COMPLAINANT KAWASAKI KISEN KAISHA, LTD. ON DISCOVERY DEMANDS
REGARDING “K” LINE RO/RO VESSELS AND “K” LINE CONTAINER VESSELS**

“K” Line has produced some thousands of pages of documents by discs served on the Port. “K” Line made every effort in the production of documents to provide the metadata associated with the documents. However, for reasons set forth in the Status Report “K” Line filed Monday, October 21, 2013, none of the documents, much less the metadata, is material to the issue here by any stretch of the imagination.

The first question is, “what is metadata?”

The common definition of metadata is “data about data.” In *Williams v. Sprint/United Mgmt. Co.* the Court defined metadata:

Metadata, commonly described as "data about data," is defined as "information describing the history, tracking, or management of an electronic document." n25 Appendix F to *The Sedona Guidelines: Best Practice Guidelines & Commentary for Managing Information & Records in the Electronic Age* defines metadata as "information about a particular data set which describes how, when and by whom it was collected, created, accessed, or modified and how it is formatted (including data demographics

such as size, location, storage requirements and media information.)" n26 Technical Appendix E to the Sedona Guidelines provides an extended description of metadata. It further defines metadata to include "all of the contextual, processing, and use information needed to identify and certify the scope, authenticity, and integrity [*18] of active or archival electronic information or records." n27 Some examples of metadata for electronic documents include: a file's name, a file's location (e.g., directory structure or pathname), file format or file type, file size, file dates (e.g., creation date, date of last data modification, date of last data access, and date of last metadata modification), and file permissions (e.g., who can read the data, who can write to it, who can run it). n28 Some metadata, such as file dates and sizes, can easily be seen by users; other metadata can be hidden or embedded and unavailable to computer users who are not technically adept. n29 (230 F.R.D. 640, 646 (D. KAN. 2005) (2005 U.S. Dist. LEXIS 21966, at15)

In order to show how pointless the Port's metadata request is, the following describes the status of the Port's requests for production of documents to include metadata:

1. On September 1, 2011 the Port served on the Complainants the Port's First Request for Production of Documents consisting of twenty-four (24) separate Requests.

2. The responsive documents were collected by "K" Line America, Inc. (KAM) and the KAM ISD department creation of a disc containing the uploaded responsive electronic files with associated metadata on behalf "K" Line. This disc was sent to Attorney Halperin for drafting of "K" Line's First Response to Production of Documents. The disc received by Mr. Halperin was unreadable by Mr. Halperin's office. KAM's ISD department subsequently produced a thumb driving containing .pst files. These files were loaded onto the Flex system. The files were difficult to work with because many were produced in the form of emails sent to Mr. Halperin and all were duplicated more than once.

3. On November 23, 2011 Mr. Halperin served "K" Line's Response to the Port's First Request for Production of Documents in disc format covering document production for Bates CA-KL-000000 to CA-KL-001175. The responsive documents were in a foldering format on the disc. The folders on the disc contained the results of the efforts by the KAM ISD department to upload the responsive electronic files and the associated metadata.

4. On December 1, 2011 the Port served on Complainants their Second Request for Production of Documents consisting of three (3) additional separate Requests.

5. On March 9, 2012 Mr. Halperin served "K" Line's Response to the Port's Second Request for Production of Documents in disc format covering document production for Bates CA-KL-001176 to CA-KL-002368. The disc contained the responsive documents as uploaded by the KAM ISD department with the electronic files and associated metadata and as processed by Mr. Halperin's office in response to the Port's requests.

6. When Cichanowicz, Callan, Keane, Vengrow and Textor (“CCKVT”) office took over the file, the corrupt CD and .pst thumb drive were provided along with access to the Flex system. CCKVT had the same problem reviewing the “K” Line files, particularly those related to metadata since the emails were attached to emails sent to Mr. Halperin and could not be extracted without changing the metadata. On October 18, 2012, CCKVT returned the “K” Line thumb drive to Mr. Theodorides at the ISD department at KAM’s Richmond office for reproduction in order that the metadata could be properly provided to the Port.

7. On December 7, 2012 CCKVT served “K” Line’s Supplemental Response to the Port’s Request for Production of Documents, as provided by ReedSmith’s office, in disc format covering document production for Bates CA-KL-002369 to CA-KL-004065. The disc contained the responsive documents as uploaded by the KAM ISD department with the electronic files and associated metadata and as processed by ReedSmith’s office in response to the Port’s requests. An email containing the “K” Line Privilege Log created by ReedSmith was also served by CCKVT on that same day.

8. Prior to the December 7, 2012 production, all “K” Line documents were reviewed by Mr. Matthew Thomas of ReedSmith as uploaded to Concordance. The ReedSmith offices screened for privilege and uploaded directly to Flex and the disc with the December 7 production was sent directly from Flex to the Port. Only those fields required to be produced were produced by Flex to the Port. In the event that the fields were not populated in the original document, they were left blank. This was the same as the metadata produced by the Port.

9. The Port demanded additional metadata in regard to “K” Line’s first document production. Objections were made by “K” Line and the Judge ordered the Port to designate specific documents requiring metadata.

10. On October 14, 2013 in response to “K” Line’s request for confirmation of outstanding discovery due from “K” Line, the Port’s counsel responded, by way of electronic mail, and attached two documents in PDF format. The PDF attachments contained the Port’s letter of November 12, 2012 to Mr. Paul Keane, requesting Complainants to provide metadata similar to that provided by the Port Authority for certain documents which were part of Complainants initial productions made on November 23, 2011. The other PDF attached to the Port’s email of October 14, 2013 was titled “Additional Production - Metadata Requests” and contained a document consisting of “Exhibit A-E” which identified documents by Bates numbers already produced, but requested by the Port to provide metadata for those documents. Exhibit B of that PDF document detailed the Port’s Request to “K” Line to produce metadata for specific documents which were previously submitted to the Port on November 23, 2011 as “K” Line’s First Response to the Port’s Document Request. Exhibit B identified Bates CA-KL-000008 to Bates CA-KL-001175 as the specific documents requiring production of metadata by “K” Line (**See Attached Exhibit A**).

11. A copy of the disc containing “K” Line’s First Response to the Port’s Document Request which was produced to the Port on November 23, 2011 has been reviewed for this report. The result of the disc review noted the disc had three main folders, the first of which was identified as “DATA”

and contained four subfolders identified as "CA-KL0001.scv," "CA-KL001.DAT," "CA-KL001.DII," "CA-KL001.LFP" and "CA-KL001.OPT." The "CA-KL0001.scv" folder contained an Excel document detailing the documents being submitted by "K" Line to the Port by columns with the documents identified by Bates CA-KL-000001 to, CA-KL-001175, by range of how many pages were associated with the specific document being submitted, a column confirming how many total pages were associated for that specific document and a column identifying the document as "Confidential." The remaining "DATA" subfolders identified as "CA-KL001.DAT," "CA-KL001.DII," "CA-KL001.LFP" and "CA-KL001.OPT" were inaccessible. Attempts to open the subfolders resulted in receipt of the message "You are attempting to open a file of type 'DAT file' (.DAT). These files are used by the operating system and by various programs. Editing or modifying them could damage your system." Or the message "To open this file, Windows needs to know what program created it. Windows can go online to look it up automatically, or you can manually select from a list of programs on your computer." Attempts to have Windows identify the program which created the document resulted in the message that "Windows does not recognize this file type."

12. The remaining folders on the disc, identified as "OCR" contained documents in a text (.TXT) format and the folder identified as "IMAGES" contained the documents as scanned images (TIF) of the documents being produced. These documents were accessed, reviewed and samples of the different document types were printed out.

A summary of the documents identified by the Port and requested to be reproduced with metadata by "K" Line by their identifying Bates numbers is as follows:

a. Bates CA-KL-000008 to Bates CA-KL-000021 consist of press announcements made by Norfolk Southern. The press announcements were received via email by "K" Line personnel as addressed by Norfolk Southern. Each announcement is a single event from Norfolk Southern to "K" Line personnel. The e-mails, on their face contain the necessary metadata (author, recipient, CCs, date, and content). Copies of such e-mails will be produced, if they can be located. Any other hidden metadata contained in the e-mails or their attachments is in the possession, custody and control of Norfolk Southern as the originator of the e-mails and attachments, not "K" Line. "K" Line personnel receiving the Norfolk Southern press announcement via email did not participate in the creation of the Norfolk Southern press announcement and did not revise the press announcement being made by Norfolk Southern. All metadata contained in the email and any attachment was the result of Norfolk Southern's action, not "K" Line's. The press announcement would have been widely and publically available on the Norfolk Southern web site at http://www.nscorp.com/nscintermodal/Intermodal/News/Current_News/. If Norfolk Southern included other customers or persons, either in copy or blind copy, to receive that particular announcement via email that is not pertinent to this case. "K" Line has no interest in who Norfolk Southern chooses to receive their press announcements. Norfolk Southern is not a party to this case and it is immaterial to this case who Norfolk Southern chose to receive their electronic press announcements. (Attached Samples CA-KL-000008 to CA-KL-000011, .TIF and .TXT versions). **(See Attached Exhibit B).**

b. Bates CA-KL-000022 to Bates CA-KL-000022 is a letter dated September 24, 2004, sent via U. S. Mail and email, from Norfolk Southern to Mr. Dave Daly of KAM. The letter listed the date for closure of the ExpressRail facility and the grand opening of the new Intermodal terminal scheduled for September 27, 2004. The e-mail, on its face contains the necessary metadata (author, recipient, CCs, date, and content). A copy of such e-mail will be produced, if it can be located. Any other hidden metadata contained in the e-mail or its attachment is in the possession, custody and control of Norfolk Southern as the originator of the e-mail and attachments, not "K" Line. Mr. Daly did not participate in the creation of the Norfolk Southern letter of September 27, 2004 and obviously would not revise a letter created by Norfolk Southern. (Attached CA-KL-000022, .TIF and .TXT versions). **(See Attached Exhibit C).**

c. Bates CA-KL-000023 to Bates CA-KL-000038 consist of press announcements made by Norfolk Southern. The press announcements were received via email by "K" Line personnel as addressed by Norfolk Southern. Each announcement is a single event from Norfolk Southern to "K" Line personnel. The e-mails, on their face contain the necessary metadata (author, recipient, CCs, date, and content). Copies of such e-mails will be produced, if they can be located. Any other hidden metadata contained in the e-mails or their attachments is in the possession, custody and control of Norfolk Southern as the originator of the e-mails and attachments, not "K" Line. "K" Line personnel receiving the Norfolk Southern press announcement via email did not participate in the creation of the Norfolk Southern press announcement and did not revise the press announcement being made by Norfolk Southern. All metadata contained in the email and any attachment was the result of Norfolk Southern's action, not "K" Line's. The press announcement would have been widely and publically available on the Norfolk Southern web site at http://www.nscorp.com/nscintermodal/Intermodal/News/Current_News/. If Norfolk Southern included other customers or persons, either in copy or blind copy, to receive that particular announcement via email that is not pertinent to this case. "K" Line has no interest in who Norfolk Southern chooses to receive their press announcements. Norfolk Southern is not a party to this case and it is immaterial to this case who Norfolk Southern chose to receive their electronic press announcements. (Attached Samples CA-KL-000023 to CA-KL-000026, .TIF and .TXT versions). **(See Attached Exhibit D).**

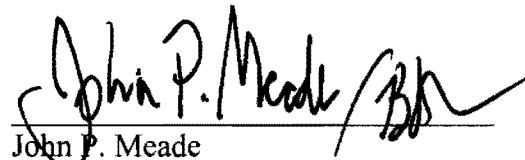
d. Bates CA-KL-000039 to CA-KL-001159 consist of nothing more than a printout of 1,121 pages of "K" Line container numbers which were pulled from the "K" Line database. (Attached Samples CA-KL-000039 to CA-KL-000043 .TXT version). **(See Attached Exhibit E).**

e. Bates CA-KL-001160 to CA-KL-001175 consist of cover letters and invoices of CFC charges by Maher Terminals ("Maher") to "K" Line and addressed to Ms. Melissa Spata at the "K" Line New Jersey office. The cover letters and invoices were received via email by "K" Line personnel as addressed by Maher. Each cover letter and invoice is a single event from Maher to "K" Line personnel. The e-mails, on their face contain the necessary metadata (author, recipient, CCs, date, and content). Copies of such e-mails will be produced, if they can be located. Any other hidden metadata contained in the e-mails or their attachments is in the possession, custody and control of Maher as the originator of the e-mails and attachments, not "K" Line. "K" Line personnel receiving the Maher cover letters and invoices did not participate in the creation of the Maher documents and did not revise the documents created by Maher. All metadata contained in the email

and any attachment was the result of actions by Maher, not "K" Line. Maher is not a party to this case and it is immaterial to this case who at Maher creates their cover letters or invoices, in what format and how they are altered prior to transmitting to "K" Line for payment. (Attached Bates CA-KL-001160 to CA-KL-001175, .TIF and .TXT versions). (**See Attached Exhibit F**).

In response to the Port's letter of November 12, 2012 requesting specific documents received by "K" Line, there is no metadata information available to "K" Line on "how, when and by whom it was collected, created, accessed, or modified and how it is formatted (including data demographics such as size, location, storage requirements and media information.)." There is nothing whatsoever material to the issue in this case in this information in the possession of non-parties.

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "John P. Meade" followed by a stylized flourish or initials.

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Dated: October 23, 2013

CERTIFICATE OF SERVICE

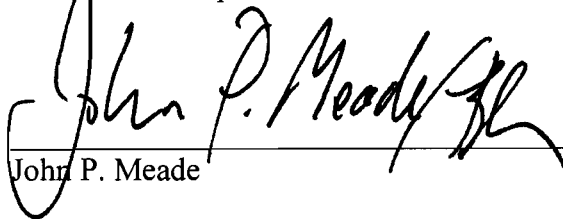
I hereby certify that I caused a true and correct copy of the foregoing Metadata Supplement to Status Report to be served October 23, 2013, via e-mail, upon the following:

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